



Administration of Justice (Emergency Provisions) (Scotland) Act 1979

1979 CHAPTER 19

An Act to provide for emergency arrangements for the administration of justice in Scotland; to suspend in part the operation of section 17 of the Stamp Act 1891; and for connected purposes. [22nd March 1979]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) This Act shall cease to be in force one month after the date prescribed by the Secretary of State by order made by statutory instrument; and the period from 23rd February 1979 until the prescribed date is in this Act referred to as “the emergency period”. Duration and effect of Act.

(2) This Act shall have effect, and shall be deemed always to have had effect, in relation to the whole of the emergency period.

2. Subject to sections 3 and 4 of this Act, where, by reference to any time-limit or period of time, the time, or the latest time, when for any purpose anything requires to be done in relation to legal proceedings, civil or criminal (including the institution of such proceedings), occurs during the emergency period, that thing may be done at any time which is not later than one month after the expiry of the emergency period. Extension of time limits, etc.

Period of
detention of
unconvicted
prisoners.
1975 c. 21.

3. Nothing in section 2 of this Act shall affect section 101 of the Criminal Procedure (Scotland) Act 1975 (prevention of delay in trials) but, in computing the period of 110 days for the purposes of that section, no account shall be taken of any period of detention of an accused person since committal until liberated in due course of law, being a period of detention which occurred during the emergency period.

Prosecution of
offences and
criminal diets.

4.—(1) For the avoidance of doubt, any power to cite accused persons and witnesses to a criminal diet shall be exercisable during the emergency period notwithstanding that any ordinary sitting of the court has been suspended.

(2) Any criminal diet, which is due to be held on a date during the emergency period and which is not called or duly adjourned or continued, shall be deemed to be adjourned, as if the accused person had failed to appear, to such date as the court may determine on an application by the prosecutor (which application need not be intimated to the accused person) made at any time which is not later than one month after the expiry of the emergency period, and such date shall be intimated to the accused person not less than seven days before it occurs.

Arrangements
for court
proceedings
during
emergency
period.

5.—(1) Without prejudice to any existing powers, a judge of any court may do anything during the emergency period in relation to legal proceedings, civil or criminal (including the institution of such proceedings), which could be done by the clerk of court, sheriff clerk or other officer of court, and in any particular case may with the consent of the Secretary of State authorise any person to do any such thing in relation to such proceedings.

(2) During the emergency period, a copy of any document lodged in court in connection with legal proceedings (civil or criminal) may be accepted by the court in lieu of the original; and any such copy shall be taken to be a true copy unless the contrary is proved.

(3) Any failure or omission of a judge or other person doing anything by virtue of subsection (1) above, in relation to the keeping of any record of proceedings, shall not invalidate the proceedings.

Partial
suspension of
operation of
s. 17 of Stamp
Act 1891, etc.
1891 c. 39.

6. Section 17 of the Stamp Act 1891 (penalty for enrolling, etc., instrument not duly stamped) shall not have effect in relation to the Keeper of the Registers of Scotland while this Act is in force; and a deed recorded or registered in conformity with this section shall, notwithstanding section 14 of that Act, be available for any purpose provided that the deed is duly stamped within three months of its recording or registering, as the case may be, or such later time as the Commissioners of Inland Revenue may allow.

- 7.—(1) This Act may be cited as the Administration of Justice (Emergency Provisions) (Scotland) Act 1979. Short title
and extent.
- (2) This Act shall extend to Scotland only.